

Combating discrimination in education

Tenth consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Approved by the UNESCO Executive Board at its 207th session in October 2019

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, respond to UNESCO’s constitutional mandate to “*advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social*”. The Convention is the first legally binding international instrument providing for the **right to education** and the only one exclusively devoted to it.

The right to education is today one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community. SDG4 is rights-based and seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

The Convention has been recognized as a **cornerstone of Education 2030 agenda**. It also represents a powerful tool to advance SDG4 by ensuring effective articulation between normative and operational work.

The present Guidelines are intended to assist Member States in the preparation of national reports on the implementation of the Convention as well as the Recommendation in the context of the 10th Consultation.

2. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are obliged to incorporate its provisions into their national Constitution or domestic law. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain states might experience, in particular on account of their federal structure, in ratifying the Convention.

Bearing in mind the differences in wording and in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

Most importantly, the reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO’s Constitution states that “*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*”. Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

3. Participation in consultations

In light of the Education 2030 agenda, the monitoring of the implementation of the Convention and the Recommendation is of crucial importance in order to ensure an education that is truly for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. Concrete measures taken by Member States in accordance with their legal obligations under these instruments contribute to this process.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG4 on education, efforts have also been made to ensure that the specific components are included in the guidelines and that the guidelines serve as a valuable monitoring tool for measuring progress towards SDG4 targets.¹ In addition, in view of the educational challenges posed by the influxes of refugees and displacements worldwide, the guidelines provide the opportunity to report on concrete measures taken during the reporting period to include refugees and migrants in their educational systems. An emphasis is also to be placed on legal and policy framework that protects the rights of national minorities.

The reporting should be as comprehensive as possible and the process needs to be **participatory** and conducted in cooperation between ministries of education and other ministries dealing with aspects of the right to education. Relevant information from CSOs having education as their main field of activity should also be provided.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

4. General indications

The reporting period for the 10th Consultation on the implementation of the Convention and the Recommendation covers four years (2017-2020).

Member States that already reported to the 9th Consultation (2016-2017) are invited to **refer to their reports** when appropriate. Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

In the preparation of reports, Member States are kindly requested to provide brief and concise information, although they may provide details on the scope of the question if deemed necessary. In addition to a description of the constitutional, legislative, administrative and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

5. Modalities

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, two series of questions/remarks are presented:

¹ Please note that the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms is used specifically for monitoring SDG target 4.7. The 1960 Convention and Recommendation contribute more generally to the body of evidence for monitoring the targets of SDG4.

- (1) Open-ended and closed-ended questions to be directly filled in by Member States through a participatory process. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

In their responses, Member States are encouraged to provide information in a concise manner while preserving substantive and relevant content.

GENERAL INFORMATION:

Country name: Australia

Organization or entity responsible for the preparation of the report: Department of Education, Skills and Employment

I. Information on the legislative, judicial, administrative and other measures taken by the state at the national level**1. Ratification of the Convention²**

Is your country a State Party to the Convention?

☒ Yes

☐ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country:

☐ Close to ratification

☐ Underway

☐ Actively under preparation

- Please briefly explain the difficulties encountered in completing the ratification process and the means of overcoming them:

Describe:

➔ *the obstacles, whether legal, institutional, political or practical*

➔ *the means of overcoming them and the extent to which UNESCO can assist in completing the process*

☐ No, not considering ratification in the near future. Please explain why:

Australia accepted the Convention against Discrimination in Education on 29 November 1966. The Convention entered into force for Australia on 1 March 1967.

2. Ratification of the Protocol³ instituting a Conciliation and Good Offices Commission to be responsible for seeking the settlement of any disputes which may arise between States Parties to the Convention against Discrimination in Education

Has your country ratified the Protocol?

☒ Yes

☐ No, please briefly explain the difficulties encountered:

Australia ratified the Protocol Instituting a Conciliation and Good offices Commission to be Responsible for Seeking the settlement of any Disputes which may Arise between States Parties to the Convention against Discrimination in Education (1962) on 22 August 1974.

3. Legal framework governing the protection of rights guaranteed in the Convention and the Recommendation in the national legal system

In case your country is a State Party to the Convention:

- Is the Convention directly applicable in your country's domestic law following its ratification?

☐ Yes ☒ No

- If not, has it been incorporated into the national Constitution or domestic law so as to be directly applicable?

☒ Yes ☐ No

This seeks information on whether the provisions of the Convention are guaranteed in a domestic legal instrument. The report should list the main legal texts (Constitution, legislative text or other provisions) adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

The Australian Government believes all people are entitled to respect, dignity and the opportunity to participate in society regardless of their personal attributes, and recognises that to enjoy civil and political rights on an equal basis with others, people need to be able to do so free from discrimination.

Commonwealth anti-discrimination laws make discrimination on a number of protected grounds (including age, disability, sex, sexual orientation and race) unlawful in a wide range of areas of public life (including employment, education, access to goods, services and facilities, access to premises and accommodation) through the *Age Discrimination Act 2004*, *Disability Discrimination Act 1992*, *Racial Discrimination Act 1975* and *Sex Discrimination Act 1984*.

The Disability Discrimination Act makes direct and indirect discrimination on the basis of disability unlawful in key areas of public life. The Act also covers people who are treated less fairly because they are relatives, friends, carers, co-workers or associates of a person with a disability.

In addition, the Act contains a duty to make reasonable adjustments, which is a positive obligation on duty holders to take practical steps to address disadvantage experienced by someone with a certain attribute. The requirement to make reasonable adjustments for people with disability applies where it will not cause unjustifiable hardship. An

example of a reasonable adjustment is installing audio announcement in a lift so that people with vision impairment can access a building.

The Disability Discrimination Act also explicitly prohibits disability harassment in employment, education and the provision of goods and services.

Section 31 of the Disability Discrimination Act allows the Attorney-General to make disability standards in relation to unlawful discrimination. There are three standards currently in force, including the Disability Standards for Education 2005. The standards are intended to give further precision to the rights and obligations under that Disability Discrimination Act and provide further detail on the rights and responsibilities about equal access and opportunity for people with disability and to ensure compliance with the obligations within the Act.

The Disability Standards for Education clarify the obligations of education and training providers, and the rights of students with disability and their families under the Disability Discrimination Act. The standards provide a framework to ensure that students with disability are able to access and participate in education on the same basis as other students. All jurisdictions and education providers (both public and private) and sectors are required to comply with the standards.

The Disability Standards for Education were formulated under the Disability Discrimination Act and have the force of law as subordinate legislation under that Act. The Disability Discrimination together with the Disability Standards for Education 2005 ensure that all students with disabilities are given the opportunity to participate in education on the same basis as other students.

- Have the provisions of the Convention been invoked before and given effect to by courts, tribunals and administrative authorities?

☒ Yes ☐ No

If yes, please illustrate on the basis of available case law and jurisprudence. Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the rights guaranteed by the Convention and the scope of such competence.

See above

In case your country is not a State Party to the Convention:

- Have legislative measures been taken pursuant to the Recommendation?

☐ Yes ☐ No

If yes, the report could list the main texts adopted to guarantee the right to education for all and to promote equal educational opportunities. References, dates and aims could be provided.

Not applicable

- Please explain briefly the extent to which public policies and programmes correspond to the general provisions of the Recommendation.

Information supplied could demonstrate how such policies and programmes comply with commitments of the right to education under the Recommendation.

Not applicable

II. Information on the implementation of the Convention or Recommendation

1. Non-discrimination and equal opportunities in education in the context of Sustainable Development Goal 4 (SDG4)

Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation provide for non-discrimination and equal opportunities in education. This part relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity.

*This corresponds to the overall aspiration of SDG4 which aims to “**ensure inclusive and equitable quality education and promote lifelong learning opportunities for all**” by 2030. It therefore covers all the SDG4 targets, but also specifically SDG target 4.5.⁴*

1.1 Please indicate measures adopted by your government to eliminate and prevent discrimination in education within the meaning of the Convention/Recommendation (please tick all that apply)⁵ (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation prohibit discrimination in education
- ☒ Regulations prohibit discrimination in education
- ☒ Policies and programmes aim to eliminate and prevent discrimination in education
- ☒ Access to justice in case of violations of the right to non-discrimination in education
- ☒ Combatting discrimination in terms of curriculum
- ☐ Other:

The Australian Government believes that all students have the right to learn in a safe and supportive environment, free of discrimination.

The Australian Government Department of Education, Skills and Employment developed the Australian Student Wellbeing Framework (the Framework) which provides guiding principles and effective practices to support school communities build and maintain positive relationships through leadership, inclusion, student voice, partnerships and support. It also provides funding for the Student Wellbeing Hub, which is an online portal that provides students, parents and educators with evidence-informed resources to support and strengthen the integral relationships between students' social and emotional development and their learning outcomes. This includes specific resources that address racism and how students can be empowered to take action against racism.

The Australian Government also endorses an annual National Day of Action against Bullying and Violence, which empowers students and unites school communities to find workable solutions to address bullying and violence.

Other measures implemented by the Australian Government include:

- Disability Discrimination Act 1992
- Disability Standards for Education 2005

⁴ Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

⁵ See: Article/Paragraph 1(1).

- Australian Human Rights Commission
- State and territory human rights/discrimination commissions
- State and territory ombudsman offices
- Australian Curriculum, Assessment and Reporting Authority has a Students with Disability Advisory Group

Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

- ➔ *Non-discrimination in the admission of pupils to educational institutions*
- ➔ *Non-differential treatment, including of foreign nationals resident in your country*

- Part A of the *Higher Education Standards Framework (Threshold Standards) 2015* legislative instrument (<https://www.legislation.gov.au/Details/F2015L01639/>) sets out minimum acceptable requirements for the provision of higher education in or from Australia by higher education providers registered under the *Tertiary Education Quality and Standards Agency Act 2011* (TEQSA Act) (<https://www.legislation.gov.au/Details/C2019C00324>).
- Under Standard 2.2 of the Threshold Standards instrument, registered higher education providers are required to accommodate student diversity, 'including the under-representation and/or disadvantage experienced by identified groups, and create equivalent opportunities for academic success regardless of students' backgrounds.' They are required to give specific consideration to the recruitment, admission, participation and completion of Aboriginal and Torres Strait Islander peoples. They are further required to monitor participation, progress and completion by identified student subgroups. Findings are to be used to inform admission policies and improvement of teaching and support strategies for these subgroups.
- The Disability Standards for Education (the Standards) came into effect on 18 August 2005. The Standards seek to ensure that students with disability can access and participate in education on the same basis as other students. On the same basis means that a student with disability must have opportunities and choices which are comparable with those offered to students without disability. This applies to:
 - admission or enrolment in an institution
 - participation in courses or programs
 - use of facilities and services.
- Additionally, nationally agreed Foundation to year 10 Australian Curriculum (the curriculum) sets the expectations for what all Australian students should be taught, regardless of where they live or their background.

1.2 Please indicate actions taken by your government to guarantee equal access to all levels and types of education in your country (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation guarantee equal access to education
- ☐ Regulations ensure equal access to all levels and types of education
- ☐ Policies and programmes ensure equal access to all levels and types of education
- ☐ Other:

- Disability Discrimination Act 1992
- Disability Standards for Education 2005

- Please indicate the relevant legal, regulatory or policy texts and provide a brief description of the measures taken:

This notably is covered under SDG target 4.1 and partly target 4.b⁶

Australia's Attorney General's Department has carried the Disability Discrimination Act jointly with the Department of Education, Skills and Employment of the Disability Standards for Education 2005. See 1.1 for further information.

1.3 Please indicate the actions taken and planned in your country to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners (including girls and women, the economically and socially marginalized, people with disabilities and other vulnerable groups) in learning processes (several items could be ticked/mentioned):

- | | |
|--|--|
| ☒ Providing financial incentives and fellowships | ☒ Providing auxiliary assistance |
| ☒ Providing positive or affirmative action measures | ☒ Adapting education infrastructure |
| ☒ Ensuring inclusion in mainstream schools for all learners | ☒ Adapting curricula and methods |
| ☒ Training teachers on inclusive education | ☐ Providing language classes to newcomers (e.g. refugees) |
| ☒ Ensuring gender parity in science, technology, engineering and mathematics (STEM) and technical and vocational training (TVET) | ☐ Eliminating administrative barriers to education ⁷ |
| ☐ Providing re-entry programmes for young mothers | ☒ Providing flexible learning pathways |
| ☐ Eliminating all barriers for pregnant girls or young mothers in education | ☒ Valuing diversity in schools |
| ☒ Other: | ☒ Combatting stereotyping and stigmatisation |

The Australian Government will invest an estimated \$29.6 billion to support the education of students with disability over 2018 to 2029 under the students with disability loading, which is additional to the base funding provided to schools. On average, funding for students with disability will grow by 5.5 per cent each year over this period (from a 2018 base).

Since 2018, the Nationally Consistent Collection of Data on School Students with Disability (NCCD) is used to calculate the loading. The NCCD focuses on the adjustment provided to the student based on their functional needs to participate in education, rather than the type of disability. The collection counts all students receiving adjustments to support their access and participation in learning due to disability – not just those with medical diagnosis.

Through the NCCD, teachers use professional judgement, supported by evidence, to include students in the collection based on nationally consistent guidelines. Decisions are made in consultation with the student and their parents or carers. The NCCD model recognises the

⁶ Which calls on states to “substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes”.

⁷ Administrative barriers to education include, amongst others, lack of identity papers or birth certificates required to enrol.

professional knowledge, practice and judgements of teachers and school staff who best understand the educational needs of their students.

The NCCD process aligns with, and helps to reinforce, schools' obligations under the Disability Discrimination Act 1992 and the Disability Standards for Education 2005.

The Australian Government also committed \$20 million over four years from 2017–18 focussed on building schools' capacity to implement the NCCD. The activities ensure that teachers and schools have the knowledge and evidence required to make accurate assessments under the NCCD and to provide educational adjustments so that students with disability can participate in education on the same basis as other students. This funding has supported the development of a national website and professional learning portal for school leaders, teachers and parents on the NCCD, as well as research and resource development.

- Please elaborate further on the measures taken, including those to ensure *gender equality and the empowerment of girls and women in and through education*:

Australia has implemented a number of schemes and measures in education that apply to all identified equity groups as well as vulnerable and disadvantaged students and students with disabilities.

The Australian Government Department of Education, Skills and Employment developed the **Australian Student Wellbeing Framework** (the Framework) to provide guiding principles and effective practices to support whole school communities build and maintain positive relationships through leadership, inclusion, student voice, partnerships and support.

It also provides funding for the **Student Wellbeing Hub**, which is an online portal that provides students, parents and educators with evidence-informed resources to support and strengthen the integral relationships between students' social and emotional development and their learning outcomes. This includes specific resources that address sexism and how students can be empowered to take action against sexism.

The **Australian Curriculum** provides opportunities for teachers to develop inclusive teaching and learning programs that build on students' interests, strengths, goals and learning needs to support all students to achieve their potential, regardless of their gender. It is designed to provide a curriculum that supports all students to achieve their full potential. The Australian Curriculum also includes seven General Capabilities, including Ethical Understanding and Personal and Social Capability, to provide opportunities for students to build in areas such as resilience, empathy, self and social awareness and management and understanding of rights and responsibilities.

Government funding initiatives:

Through the **Commonwealth Grant Scheme (CGS)** (<https://www.education.gov.au/commonwealth-grant-scheme-cgs>), the Australian Government subsidises tuition costs for higher education students across a wide range of discipline areas and qualification levels. Since the beginning of 2012, public universities have been able to decide how many domestic students they enrol in bachelor level courses (excluding medicine). They receive funding for these 'Commonwealth supported places' (CSPs), up to a limit currently determined by the Minister for Education and Training.

Australia's Higher Education Loan Program (HELP)

(<https://www.education.gov.au/higher-education-loan-program-help>) provides loans to students studying approved higher education courses. The scheme allows students to

defer the costs of tuition until their taxable income reaches a certain level at which repayments commence.

The CGS and the HELP scheme supports students facing disadvantage, as they need not pay upfront for their higher education. As Commonwealth supported students, they receive subsidised tuition and are able to borrow their entire student contribution amount under the HECS-HELP loan scheme.

In addition, Australia has a number of smaller programs designed to improve higher education outcomes for identified equity groups:

The Higher Education Participation and Partnerships Program (HEPPP)

(<https://www.education.gov.au/higher-education-participation-and-partnerships-programme-heppp>) provides funding to assist public universities to undertake activities and implement strategies that improve access to undergraduate courses for people from low SES backgrounds, as well as improving the retention and completion rates of those students.

The Higher Education Disability Support Program

(<https://www.education.gov.au/higher-education-disability-support-programme>) provides funding to universities to undertake activities that assist in removing barriers to access and participation in higher education for students with disabilities. The program assists in providing educational support and/or equipment to domestic students with disability with high cost needs. Funding is also provided to encourage providers to implement strategies to attract and support students with disabilities.

The National Disability Coordination Officer Program (NDCO)

(<https://www.education.gov.au/national-disability-coordination-officer-programme>) is a network of regionally based officers who build links and coordinate services to ease the transition from school to tertiary education and subsequent employment, for people with disability. The NDCO Program also seeks to identify the systemic gaps and barriers that exist for people with disability in making the transition to tertiary education with the aim of informing public policy development in areas affecting the education and employment of people with disability.

A current key program that targets regional and remote students is the [Rural and Regional Enterprise Scholarships](#), which commenced in 2016. The Government has committed \$58.1 million for 3,155 scholarships, which are valued at up to \$18,000 each and support flexible study arrangements, including full-time, part-time and online study. Students can undertake study for six months full-time up to a maximum of four years full-time, or the part-time equivalent. To date, three scholarship rounds have been run in 2018 and 2019, with 2,071 students supported. A fourth round opened on 20 January 2020 on a rolling application basis for students commencing studies at any time in the 2020 academic calendar year. Special consideration is being provided to students affected by natural disasters, such as drought and bushfires.

The Government is also funding the establishment and operational costs of 25 community-owned [Regional University Centres](#) (Centres) across regional and remote Australia. The Centres are community-owned facilities in regional and remote communities that provide infrastructure such as study spaces, video conferencing, computing facilities and internet access, as well as pastoral and academic support for students studying via distance at any Australian university, enabling students to study with local support available, while still living and working in their local community. The program is aimed at addressing educational access issues in regional and remote communities where there are thin

markets for education provision, providing a cost effective and less disruptive option for students compared with relocating for further study

From 2020 to 2029, 24.5 per cent of all **Australian Government recurrent funding** will be targeted towards supporting vulnerable and disadvantaged students through these loadings.

A base amount is provided for every student, with additional loadings to support disadvantaged schools and facilitate achievement of priority cohorts, including for students with disability.

- The loading is based on the Nationally Consistent Collection of Data on School Students with Disability
- Students attracting the students with disability loading may also benefit from other loadings.
- The loading is calculated in accordance with the *Australian Education Act 2013*.

The Australian Government will invest a total of \$314.2 billion in recurrent school funding from 2018 to 2029.

- This funding includes an estimated \$29.6 billion through a loading for students with disability over 2018 to 2029. On average, funding for students with disability will grow by 5.5% each year over this period.

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Training teachers on inclusive education

The ***Australian Professional Standards for Teachers*** provide a nationally agreed quality assurance mechanism that ensures teachers in Australia have the required competencies to be effective educators.

The teacher standards require that graduate teachers can demonstrate

1. knowledge of teaching strategies that are responsive to the learning strengths and needs of students from diverse linguistic, cultural, religious and socioeconomic backgrounds
2. knowledge and understanding of strategies for differentiating teaching to meet the specific learning needs of students across the full range of abilities, and
3. knowledge and understanding of strategies to create and maintain supportive and safe learning environments.

Legislation

To ensure inclusion in mainstream schools for all learners, Australia implemented the Disability Discrimination Act 1992, and the Disability Standards for Education 2005. This ensures that students with disabilities have opportunities and choices which are comparable with those offered to students without a disability. The Australian Government strongly believes that funding should be directed to where it is needed most, recognising the different costs of educating particular groups of children, including students with disability. Under the new needs-based funding model, the Government provides a base per student amount for primary and secondary students, which is supplemented with loadings for Indigenous students, students with a disability, English language proficiency, socio-educational disadvantage, small school size and regional or remote location.

The Australian Government recognises the disparity in girls' representation in STEM subjects in schools

- Increasing the participation of girls and women in STEM requires a response from government, industry, academia and education stakeholders with long-term strategic action to address cultural and systemic barriers, as well as compliance with relevant legislation and regulations.
- In recognition of this, the Australian Government's Advancing Women in STEM strategy, released in April 2019, sets out the Government's commitment and vision for an Australian society that provides equal opportunity for all people wanting to learn, work and engage in STEM.
- It outlines the Government's strong leadership role and support in three key areas: enabling STEM potential through education; supporting women in STEM careers; and making women in STEM visible.
- The Australian Government funded the development of the Women in STEM Decadal Plan, also released in April 2019, which provides a guiding framework to set the direction for all in the STEM sector to take action on gender inequity.
- The Australian Government has appointed Professor Lisa Harvey-Smith, an astrophysicist and Professor of Practice in Science Communication and the University of NSW, as Australia's inaugural Women in STEM Ambassador.
- Professor Harvey-Smith's role as Ambassador is to advocate gender equity in science and technology, raise awareness of issues, prosecute the case for change, and build visibility and promote women in STEM.
- In addition, as part of the 2018 *Women's Economic Security Package*, the Government provided funding of \$2.35 million to extend and expand *Curious Minds*, a STEM summer school and mentoring program for high potential Years 9 and 10 female students.

The Australian Government has implemented the following programs in the early childhood learning sector to ensure greater gender equality:

Child Care Safety Net

- Under the Australian Government's Child Care Package Child Care Safety Net, low-income families on combined family incomes of \$68,163 or less a year who do not meet the activity test can access 24 hours of subsidised care per fortnight. In addition, families who do not meet the activity test but have a preschool-age child attending preschool in a Centre Based Day Care service will be eligible for 36 hours of subsidised care per fortnight.
- The low income provision recognises the importance of children from low income families having access to quality early learning, in circumstances where their parents may not otherwise meet the activity test. Children from disadvantaged backgrounds derive a greater benefit than other children from participating in a quality early learning program, and access to affordable child care for families who face multiple vulnerabilities is an important mechanism to increase engagement with the workforce.

Additional Child Care Subsidy

- The Additional Child Care Subsidy (ACCS) is part of the Child Care Safety Net, to give the most vulnerable and disadvantaged children a strong start through access to quality early childhood education and care. The ACCS is a top up payment to the Child Care Subsidy which provides targeted additional fee assistance to:
 - Children at risk of serious abuse or neglect
 - Grandparents on income support who are the principal caregiver of their grandchildren (ACCS Grandparent)
 - Families experiencing temporary financial hardship

- Low income families transitioning to work from income support

Community Child Care Fund

- The Community Child Care Fund (CCCF) Special Circumstances Grant Opportunity is designed to support continuity of child care, in particular in disadvantaged or vulnerable communities, where a service is:
 - at risk of temporary/permanent closure due to viability issues resulting from an unforeseen event or circumstance such as but not limited to natural disaster, extreme weather event or pandemic; or
 - at risk of permanent closure due to another event or circumstance, where that closure would result in a lack of suitable child care (market failure) for the community; or
 - seeking to commence a new service in a community where another service has closed, resulting in a lack of suitable child care (market failure) and the new service will require funding to establish a viable operation.
- While the CCCF Special Circumstances grant opportunity was extended to services experiencing financial viability issues as a result of COVID-19, applications for COVID-19 specific funding closed on 3 April, in consideration of the Prime Minister's 2 April announcement of the Early Childhood Education and Care Relief Package.

In Home Care program

- The In Home Care program is designed to support access to early childhood education for children who cannot access mainstream services.
- Early childhood education is provided in the home for reasons including geographic isolation, non-standard work hours of parents or families with complex and challenging needs. Care and education is provided by registered In Home Care Support Agencies in each state or territory, and quality is monitored by the Australian Government.
- In Home Care is targeted at those families that need this care the most, with a focus on quality early childhood education and care provided by qualified educators.
- To access In Home Care, a family must be eligible for the Child Care Subsidy.
- Up to 3,200 In Home Care places are available throughout Australia.

Inclusion Support Programme

- In the 2018-19 Budget, the Australian Government committed around \$550 million over four years to the Inclusion Support Programme (ISP), as part of the Child Care Safety Net under the new Child Care Package.
- The ISP aims to increase access and participation in early learning and child care for children with additional needs through developing and embedding services' skills to include children with additional needs in a supportive early learning environment.
- The Program's objectives are to:
 - support mainstream early learning and child care services to improve their capacity and capability to provide quality inclusive practices, address participation barriers and include children with additional needs alongside their typically developing peers; and
 - provide parents and carers of children with additional needs with access to appropriate early learning and child care services that assist those parents to participate in the workforce.

Connected Beginnings

- Aboriginal and Torres Strait Islander children who are experiencing disadvantage can benefit from Government programs under the Child Care Safety Net aimed at improving accessibility of early childhood education, outlined above.
- In addition, the Australian Government is funding the Connected Beginnings Program, which is a place-based initiative currently funding 15 sites to integrate early childhood education, maternal and child health, and family support services with schools for Indigenous 0-5 year olds to reduce disadvantage and support a positive transition to school.
- The Connected Beginnings program is jointly funded and delivered with the Department Health, with the Australian Government Department of Education, Skills and Employment delivering the service integration aspect and Health supporting increased service delivery through Aboriginal and Community Controlled Health Organisations.
- The Department of Education, Skills and Employment is providing around \$12 million annually to Connected Beginnings projects.

National Quality Framework (NQF)

- The National Quality Framework (NQF) for early childhood education and care is the national approach to the regulation and quality assessment for early childhood education and care services in Australia and comprises the Education and Care Services National Law (National Law) and the Education and Care Services National Regulations (National Regulations).
- The NQF was introduced in 2012 to improve education and care across, long day care, family day care, preschool/kindergarten and outside school hours care services with the aim of improving educational and development outcomes for children.
- The National Quality Standard (NQS) is a component of the National Regulations and sets a benchmark for the quality of all education and care services across Australia. The NQS is made up of the following seven quality areas which early education and care services are assessed and rated.
 - Quality Area 1: Educational program and practice
 - Quality Area 2: Children's health and safety
 - Quality Area 3: Physical environment
 - Quality Area 4: Staffing arrangements
 - Quality Area 5: Relationships with children
 - Quality Area 6: Collaborative partnerships with families and communities
 - Quality Area 7: Governance and leadership.
- The Australian Government is committed to quality early learning and child care and funds the Australian Children's Education and Care Quality Authority (ACECQA) the National Body to around \$15 million per year so that it continues to assist all Australian Governments and to produce quality outcomes for children.

National Partnership on Universal Access to Early Childhood Education (UANP)

- The UANP is an agreement between federal and state/territory governments that aims to ensure all children in the year before school can access and participate in quality early childhood education programs for at least 15 hours per week (or 600 hours per year).
- It includes specific targets (tied to funding) for enrolment rates of Aboriginal and Torres Strait Islander children and children experiencing vulnerability and disadvantage. The specific actions by state and territory governments to achieve these targets vary

according to their community needs, but the agreement has overall achieved high levels of preschool enrolments across all cohorts.

Please indicate whether your country has adopted and reviewed legislation related to the minimum age for marriage so that it conforms to international standards (18 years):

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

Yes ☒ No ☐

Please provide reference to the relevant laws and provisions:

The *Marriage Act 1961* and the *Marriage Regulations 2017* outline the legal requirements for marriage in Australia, including that marriageable age is 18 years (section 11). Where there are exceptional and unusual circumstances, a judge or magistrate may make an order under section 12 of the Act authorising a person who is 16 or 17 years of age to marry a person who is over 18 years of age. Exceptional and unusual circumstances are determined on a case-by-case basis.

In addition to judicial authorisation, the marriage of a minor must not be solemnised unless written consents have been obtained from persons required by the legislation to consent to the minor's marriage (section 13). The Schedule to the Marriage Act sets out who is required to consent (generally this is the minor's parents).

It is an offence under section 100 of the Marriage Act for a person to solemnise, or purport to solemnise, a marriage if the person has reason to believe there is a legal impediment to the marriage. This includes where one or both parties are not of marriageable age. It is also an offence for a person to go through a form of ceremony of marriage with a person who is not of marriageable age (section 95 of the Marriage Act).

2. Progress made with respect to implementing the right to education in the context of SDG 4

2.1 Pre-primary education

Pre-primary education is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of early childhood care and education (ECCE) over the years. The Committee on the Rights of the Child initially recognized "the right to education during early childhood as beginning at birth" (General Comment 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation⁸. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to "the provision of at least one year of free and compulsory pre-primary education".

- Is compulsory and free of charge pre-primary education available in your country?

☐ Pre-primary education is compulsory: Please provide the age of enrolment and duration:

While pre-primary education in Australia is not compulsory or fee-free, the National Partnership on Universal Access to Early Childhood Education (UANP)—an agreement between the federal and state and territory governments—has resulted in nearly all

⁸ Which states that "ECCE is part of the right to education and the main foundation for holistic human development".

children in the year before fulltime school accessing a quality pre-primary education program.

While Early Education and Child Care in Australia is not compulsory or fee-free, the National Quality Framework for early learning and child care is the national approach to the regulation and assessment of services. The National Quality Framework comprises the Education and Care Services National Law (National Law) and the Education and Care Services National Regulations (National Regulations).

☐ Pre-primary education is free of charge for all: Please provide the duration:

See above

- Please list the laws and policies that ensure the availability of pre-primary education for all and provide information on the difficulties experienced by your government in the realization of access to pre-primary education. Brief quantitative information could be added.

While Early Education and Child Care in Australia is not compulsory or fee-free, the National Quality Framework for early learning and child care is the national approach to the regulation and assessment of services. The National Quality Framework comprises the Education and Care Services National Law (National Law) and the Education and Care Services National Regulations (National Regulations).

Child Care Package

In Australia, there is choice and flexibility for families to obtain high quality educational programs in a variety of settings, including child care centres, stand-alone preschools and preschools attached to schools. The Australian Government's primary role in child care is to support families with the cost of child care.

The Australian Government is committed to providing parents with more choice and opportunity to work, and more children with the opportunity to benefit from high quality early education and care. The Child Care Package provides genuine and much needed reform to make child care more affordable, accessible and flexible. The majority of Australian families balancing work and parenting responsibilities will benefit from the new system.

The Family Assistance Legislation Amendment (Jobs for Families Child Care Package) Act 2017 was enacted on 4 April 2017. This Act gave effect to the legislative elements of the Government's new Child Care Package, including the Child Care Subsidy and Additional Child Care Subsidy which came into effect from 2 July 2018.

Primary Legislation:

- *A New Tax System (Family Assistance) (Administration) Act 1999*
- *A New Tax System (Family Assistance) Act 1999*

National Partnership on Universal Access to Early Childhood Education

The National Partnership on Universal Access to Early Childhood Education specifically requires that cost not be a barrier for children to access a quality pre-primary education program in the year before school. Each state and territory has different approaches for giving effect to this, subject to their communities' needs.

The Australian Government has committed to extend the National Partnership on Universal Access to Early Childhood Education to provide \$453.2 million in Commonwealth support for preschool for 2021. This extension ensures that every child has access to a quality preschool education for 15 hours a week, or 600 hours per year, in the year before they start school.

The Australian Government will continue to work with state and territory governments on improvements in preschool participation—particularly relating to regular attendance by children who stand to benefit most.

2.2 Universal primary and secondary education

Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”

Primary education

- Is primary education compulsory in your country?

☒ Yes ☐ No

Please indicate the current duration period of compulsory education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to primary education. Quantitative information could be added.

Under Australian constitutional arrangements, state and territory governments are responsible for the delivery and regulation of schooling to all children of school age in their jurisdictions. The Australian Government is responsible for national leadership in key policy priority areas designed to achieve strategic outcomes.

Compulsory education in Australia starts at the age of five or six years, and concludes between the ages of 15 to 17 years old. The period of primary education is between five or six years to around 11 or 12 years. Secondary education is from 11 to 12 years through to 15 to 17 years.

The age variations reflect the different compulsory schooling requirements across the states and territories.

- Is primary education available free of charge to all?

☐ Yes: Please provide the duration and indicate the extent to which it is.

For this, please list the laws and policies that ensure the universal and free availability of primary education and indicate whether direct and indirect costs are charged (such as tuition fees, exam fees, schools supplies, uniforms, transport costs and compulsory levies on parents).

Under Australian constitutional arrangements, state and territory governments are responsible for the delivery and regulation of schooling to all children of school age in their

jurisdictions. The Australian Government is responsible for national leadership in key policy priority areas designed to achieve strategic outcomes.

Australian schooling is delivered within a government and non-government setting.

Government schools educate approximately two thirds of school aged children in Australia with the bulk of in-schooling expenses borne by the state or territory government with supplementary funding from the Australian Government. Parents or guardians are expected to cover related expenses such as school supplies, uniforms or extra-curricular activities. Specific arrangements vary between states and territories, along with support or assistance that may be available for instances where these extra costs cannot be covered by the parents or guardians.

Non-government schools education approximately one third of school aged children in Australia and are majority funded by the Australian Government with supplementary funding received from the state or territory governments. Parents or guardians are required to make an additional tuition payment to the school in a 'fee-for-service' style arrangement for students to attend the school. Parents or guardians are also expected to cover related expenses such as school supplies, uniforms or extra-curricular activities. Financial support or waiving tuition fees to assist parents or guardians who are not able to afford them is at the discretion of the individual school, including decisions to cease educating a student in the fee-for-service environment.

☐ No: Is your country already engaged in legal and policy reforms to work towards universal and free primary education?

☐ Yes ☐ No

• Please briefly provide information on the reforms taken:

Nil

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training in your country.

- Is secondary education (middle/high) available free of charge?

☒ Yes: Please provide the duration and describe the extent to which it is.

Please list the laws and policies that ensure the free availability of secondary education and describe whether direct and indirect costs are covered (such as tuition fees, exam fees, school supplies, uniforms, transport costs and compulsory levies on parents).

Under Australian constitutional arrangements, state and territory governments are responsible for the delivery and regulation of schooling to all children of school age in their jurisdictions. The Australian Government is responsible for national leadership in key policy priority areas designed to achieve strategic outcomes. Secondary education commences at around 11 or 12 years of age through to around 17 to 18 years of age.

Australian schooling is delivered within a government and non-government setting.

Government schools educate approximately two thirds of school aged children in Australia with the bulk of in-schooling expenses borne by the state or territory government with supplementary funding from the Australian Government. Parents or guardians are expected to cover related expenses such as school supplies, uniforms or extra-curricular activities. Specific arrangements vary between states and territories, along with support or assistance that may be available for instances where these extra costs cannot be covered by the parents or guardians.

Non-government schools education approximately one third of school aged children in Australia and are majority funded by the Australian Government with supplementary funding received from the state or territory governments. Parents or guardians are required to make an additional tuition payment to the school in a 'fee-for-service' style arrangement for students to attend the school. Parents or guardians are also expected to cover related expenses such as school supplies, uniforms or extra-curricular activities. Financial support or waiving tuition fees to assist parents or guardians who are not able to afford them is at the discretion of the individual school, including decisions to cease educating a student in the fee-for-service environment.

☐ No: What are the measures your government intends to take to ensure free secondary education?

- Is secondary education (middle/high) compulsory in your country?

☒ Yes ☐ No

- Please provide details on its implementation and indicate the duration of compulsory secondary education and the age of enrolment:

In this part, you may also provide information on the difficulties experienced by your government in the realization of universal access to secondary education. Quantitative information could be added.

Under Australian constitutional arrangements, state and territory governments are responsible for the delivery and regulation of schooling to all children of school age in their jurisdictions. The Australian Government is responsible for national leadership in key policy priority areas designed to achieve strategic outcomes.

Compulsory education in Australia starts at the age of five or six years, and concludes between the ages of 15 to 17 years old. The period of primary education is between five or six years to around 11 or 12 years. Secondary education is from 11 to 12 years through to 15 to 17 years.

The age variations reflect the different compulsory schooling requirements across the states and territories.

- Indicate whether your country has adopted and reviewed legislation related to the minimum age of entry into employment so that it is aligned with the end of compulsory education:

Please note that minimum age labour laws and those related to compulsory education interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore

not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes ☐ No ☐

- Please provide reference to the relevant laws and provisions:

N/A

Australia has a range of laws in place to regulate the participation of children in the workforce. These measures include state and territory compulsory education legislation, child employment/protection legislation, and work health and safety legislation supported by strong monitoring systems including labour inspection. In addition, Australia's national social security system ensures that there are no financial incentives for children to work to support their family's finances. These measures are consistent with, and have been instrumental to, the abolition of child labour and setting appropriate parameters around children's participation in paid work in Australia.

In Australia, the minimum age for admission to employment is the time at which a child ceases to be of compulsory school age (between the ages of 15 and 17 depending on the state or territory jurisdiction). Generally, state and territory legislation requires children to participate in schooling (or an approved equivalent) to Year 10, and then participate in full-time schooling, approved training or employment, or a combination of these activities until the age of 17.

2.3 Higher education

Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3⁹, and target 4.4¹⁰.

- Please indicate the measures adopted to ensure that there is no discrimination on the grounds prohibited by the Convention/Recommendation¹¹ to enter and complete higher education, including technical and vocational education and training (several items could be ticked/mentioned):

- ☒ Constitutional laws and/or legislation prohibit discrimination in higher education, including technical and vocational education and training
- ☒ Regulations prohibit discrimination in higher education, including technical and vocational education and training
- ☒ Policies and programs aim to eliminate and prevent discrimination in higher education, including technical and vocational education and training

☐ Other:

⁹ Which calls on states to "ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university".

¹⁰ Which recommends to "substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship".

¹¹ See: Article/Paragraph 1(1).

- Please provide a brief description of the relevant legal, regulatory or policy texts including measures on:

➔ *Non-discrimination in the admission of students to higher education institutions on the grounds prohibited by the Convention/Recommendation*

➔ *Non-differential treatment, including of foreign students*

In Australia, it is unlawful to discriminate on the basis of a number of protected attributes including age, disability, race, sex, intersex status, gender identity and sexual orientation in certain areas of public life, including education and employment. Australia's federal anti-discrimination laws are contained in the following legislation:

- Age Discrimination Act 2004
- Disability Discrimination Act 1992
- Racial Discrimination Act 1975
- Sex Discrimination Act 1984.

Higher education providers are subject to each of these Acts.

Higher education providers are also subject to the Disability Standards for Education 2005 which sit under the *Disability Discrimination Act 1992*. The Disability Standards for Education 2005 clarify the obligations of education and training providers, and seek to ensure that students with disability can access and participate in education on the same basis as other students.

Australia also has the *Education Services for Overseas Students Act 2000*, or ESOS Act, that establishes legislative requirements and standards for the quality assurance of education and training institutions offering courses to international students who are in Australia on a student visa. ESOS also provides tuition fee protection for international students. The National Code of Practice for Providers of Education and Training to Overseas Students 2018 (National Code 2018) sets nationally consistent standards for the delivery of courses to overseas students. All Australian education institutions must comply with the National Code to maintain their registration to provide education services to international students.

- Please indicate efforts made by your government to ensure that higher education is equally accessible to all on the basis of individual capacity and/or is available free of charge (several items could be ticked/mentioned):

Article 4 of the Convention requires states to make "higher education equally accessible to all on the basis of individual capacity". Article 13 of the International Covenant on Economic, Social and Cultural Rights, further adds that this should be pursued by "every appropriate means, and in particular by the progressive introduction of free education".

☐ Higher education is generally free of charge

☒ Higher education is accessible on the basis of individual capacity as assessed by reference to relevant qualifications and experience

☒ Higher education is accessible through financial incentives and scholarships

☒ Higher education is accessible through positive or affirmative action measures

☐ Higher education is accessible through credit transfer system between states

☐ Other:

- Please elaborate on the measures taken and provide brief information on the financial costs to receive education in higher public or private education institutions, if higher education is not free of charge.

In this part, you may also provide information on the difficulties experienced by your government as regards access to higher education and on the progress realized. Quantitative information could be added.

Through the Commonwealth Grant Scheme (CGS) (<https://www.education.gov.au/commonwealth-grant-scheme-cgs>), the Australian Government subsidises tuition costs for higher education students across a wide range of discipline areas and qualification levels. Since the beginning of 2012, public universities have been able to decide how many domestic students they enrol in bachelor level courses (excluding medicine). They receive funding for these 'Commonwealth supported places' (CSPs), up to a limit currently determined by the Minister for Education and Training.

Australia's Higher Education Loan Program (HELP) (<https://www.education.gov.au/higher-education-loan-program-help>) provides loans to students studying approved higher education courses. The scheme allows students to defer the costs of tuition until their taxable income reaches a certain level at which repayments commence.

The CGS and the HELP scheme supports students facing disadvantage, as they need not pay upfront for their higher education. As Commonwealth supported students, they receive subsidised tuition and are able to borrow their entire student contribution amount under the HECS-HELP loan scheme.

Through the Higher Education Participation and Partnerships Program, the Australian Government funds university initiatives to support the access, participation and success of low socio-economic status (SES) students, including, but not limited to:

- inclusive entry processes
- transition programs to support cultural and geographical issues of inclusion
- academic preparation
- modifications to teaching delivery and learning methods to better meet the needs of students from a low SES background
- mentoring, peer support, tutoring and continued academic support
- education programs for parents of low SES students, particularly those with children who are first in their families to access higher education
- monitoring of student progress
- institutional equity scholarships targeted at low SES students
- undertaking research and monitoring the impact and effectiveness of activities aimed at improving the participation of current and prospective domestic undergraduate students from low SES backgrounds in higher education, and developing and implementing partnership activities for the purpose of encouraging the aspirations and building the capacity of people from low SES backgrounds to access higher education.

2.4 Adult education and alternative learning

Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the efforts made by your government to establish a system of continuing education and equitable access to learning and training opportunities (several items could be ticked/mentioned):

- ☐ Provision of education for persons who have not received or completed the whole period of their primary education
- ☐ Provision of literacy programmes
- ☒ Provision of appropriate learning and life-skills programmes
- ☐ Provision of free of charge learning opportunities
- ☒ Provision of flexible learning pathways
- ☒ Provision of professional training and qualifications
- ☐ Other:

- Please elaborate further on the measures taken:

The Australian Government is committed to ensuring all Australians are able to continue accessing high-quality tertiary education throughout their lives.

Australia currently enjoys an open tertiary education system that supports Australians of all ages to learn throughout their lives. Our highly successful Higher Education Loan Program (HELP) for example, provides income-contingent loans for students of any age to assist with the cost of university education to earn base-level qualification and enter the labour market.

In Australia, 72% of undergraduates were in full-time employment in the medium term, with an overall employment rate of 87% ([GOS, 2019](#)).

Fostering a greater culture of lifelong learning and providing flexible learning pathways remains a key policy priority for the Australian Government. Multiple government agencies are actively collaborating to ensure policies and programs support Australians, of all ages, to engage in learning throughout their lives. This includes exploring a number of alternative, flexible learning pathways such as microcredentials.

Current policy initiatives to support lifelong learning/adult education

The Review of the Australian Qualifications Framework (AQF)

In December 2019, the Australian Government accepted all recommendations of the AQF Review in relation to higher education, and accepted the aims of the recommendations of the review regarding Vocational Education and Training (VET), contingent of further discussions with state and territory governments.

Implementing these recommendations will ensure that students have clear and flexible entry and exit points, as well as pathways within and between the higher education and VET sectors, and will allow students to mix and match the subjects they study to meet their education requirements.

The Government is now working with states and territories to undertake the work required to prove the value proposition outlined in the AQF Review can be delivered and to undertake the technical work required for implementation. Funding was provided in the June 2020 Job-ready Graduates higher education reform package to facilitate this work.

Microcredentials

In response to the COVID-19 pandemic, the Australian Government introduced a new microcredential initiative, incentivising higher education providers to create short, online courses in areas of skills shortage, providing new opportunities for Australians to rapidly upskill/reskill, making them more employable in areas of national demand.

To support this, in May 2020 the Government worked with state and territory governments to create the new 'Undergraduate Certificate'— a six-month higher education qualification that is recognised under the AQF and can be articulated into existing qualifications at the undergraduate level. The Undergraduate Certificate is first microcredential to be formally recognised in the AQF.

This new qualification has been developed in direct response to community and industry need based on the recommendations of the AQF Review, and enables individuals to graduate with a recognised qualification, along with new knowledge and skills for further study, professional upskilling, employment and ongoing participation in lifelong learning.

In Australia, the changing nature of work means that education beyond school is becoming increasingly important. Individuals are required to adapt in order to navigate changing pathways and evolving futures, with the average Australian likely to more than double the learning they do after the age of 21, from 19% today to 41% in 2040^[1].

These changes require greater emphasis on continuous lifelong education to gain and maintain meaningful employment. Tertiary education is fundamental in enabling lifelong learning, and ensuring the workforce of the future can evolve to meet shifts in the labour market. To support ongoing engagement in lifelong learning, the Australian Government is developing the Tertiary Learning Repository (TLR) and the National Microcredential Marketplace.

Tertiary Learning Repository

In the 2019-20 Budget, the Government announced the development of a national Tertiary Learning Repository (TLR). The TLR will be a secure digital platform that provides higher education students with details of their higher education achievements under the Australian Qualifications Framework (AQF).

Over time, the TLR will expand to include non-AQF credentials such as soft skills, microcredentials and industry training. This aims to demonstrate a student's complete learnings and capabilities gained throughout their tertiary education.

The TLR will help students and graduates navigate their learning journey and prepare for the workplace. By providing a single source for education achievements, the TLR will help individuals identify opportunities for skill development and encourage students and job seekers to regularly review and improve upon their skills to remain competitive in the job market and reach their personal career goals. Further to this, the TLR will

^[1] "Future Skills", (2019), AlphaBeta, p.8

provide verified acknowledgement of prior learning to help streamline the transition between education and employment and encourage engagement in lifelong learning.

National Microcredentials Marketplace

Under the Job-ready Graduates Package, the Government is investing \$4.3 million over three years to build a national microcredential marketplace. This will be a national online marketplace for microcredentials to strengthen credit recognition, industry relevance of qualifications and lifelong learning.

The marketplace will help individuals to identify educational opportunities that lead to strong career prospects, for them to upskill, re-skill or learn something new. The marketplace will also show arrangements for recognition of courses across higher education institutions, enabling more transparency for decision making by students and providing clarity on how a student can stack credentials and maintain their credit value.

2.5 Quality education provision and learning environment

Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

- Please indicate the measures taken by your country to ensure equivalence in all educational institutions with regard to (several items could be ticked/mentioned):

- ☒ Establishment of minimum norms and standards in education
- ☒ Establishment of conditions relating to the quality of the education provided (e.g. infrastructure, learner/teacher ratios, teaching and learning materials, use of ICT)
- ☒ Adoption of legal or regulatory provisions to ensure that children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).

- Please elaborate further on the measures taken:

To provide such quality assessment, please take into account all educational institutions of the same level. You may include information on policies, protocols or codes of conduct.

The Accreditation of Initial Teacher Education Programs in Australia: Standards and Procedures was agreed to by all Australian education ministers, these standards establish minimum requirements that initial teacher education programs must meet to be nationally accredited. Australian State and Territory teacher regulatory authorities are responsible for accrediting initial teacher education programs in line with the accreditation standards.

The accreditation standards require higher education providers to specify how pre-service teachers undertaking their programs will develop the knowledge and skills they need to be successful in the classroom. The accreditation standards set high level requirements to ensure that all initial teacher education graduates meet the requirements of the graduate career stage of the *Australian Professional Standards for Teachers*.

The teacher standards outline the competencies and skills teacher graduates should demonstrate upon entering the profession. The accreditation and teacher standards together act as a framework which sets quality standards while allowing higher education providers and schools the flexibility to design and deliver teacher training in ways that meet local needs and circumstances

The Australian Curriculum (or an approved alternative) is required to be implemented in all Australian Schools for all students in years Foundation to 10. Presented as a developmental sequence of learning it describes to teachers, parents, students and others in the wider community what is to be taught and the quality of learning expected of young people as they progress through school.

National Quality Framework for Early Childhood Education and Care

- The National Quality Framework is the national approach to the regulation and quality assessment of all child care services approved under the *Education and Child Care Services National Law Act 2010* (National Law). State and territory governments are responsible for the National Law and their regulatory authorities are responsible for the assessment and rating of all approved services.
- The National Quality Framework aims to drive quality and continuous improvement through assessing and rating services against the National Quality Standard (the NQS). The NQS has seven key quality areas, 15 standards and 40 elements which are important in delivering outcomes for children, including health and safety, physical requirements for premises, educator to child ratios, educator qualifications and respectful relationships with children and their families.
- The National Quality Standard (NQS) is a component of the National Regulations and sets a benchmark for the quality of all education and care services across Australia. The NQS is made up of seven quality areas listed below. Services are assessed and rated by their regulatory authority to determine the level of quality.
 - Quality Area 1 – Educational program and practice
 - Quality Area 2 – Children's health and safety
 - Quality Area 3 – Physical environment
 - Quality Area 4 – Staffing arrangements
 - Quality Area 5 – Relationships with children
 - Quality Area 6 – Collaborative partnerships with families and communities
 - Quality Area 7 – Governance and leadership

National Evidence Institute

The independent National Evidence Institute (the Institute) is one of eight national policy initiatives agreed to by all State and Territory governments under the current National School Reform Agreement aimed at lifting student outcomes across Australian schools.

Through the COAG Education Council, the Australian Government is working collaboratively with state and territory governments to establish the institute to support teachers and other educators in schools and early learning settings. The Institute will be established as a company co-owned by Commonwealth, State and Territory ministers responsible for schools.

The purpose of the Institute will be to position the nation's educators at the forefront of education research to improve learning outcomes for all children and young people. The Institute will focus on: generating new evidence on effective teaching and learning practices; translating evidence into user-friendly material; and getting the evidence out there so it can be easily accessed by educators and school leaders.

The Institute's workplan and research areas will be determined by its Director and Board, once appointed. Ministerial co-ownership will also help to ensure that the Institute meets the needs of all State and Territory education systems.

In the *Higher Education Standards Framework (Threshold Standards) 2015* legislative instrument (<https://www.legislation.gov.au/Details/F2015L01639/>), under Standard 2.2, registered higher education providers are required to accommodate student diversity,

'including the under-representation and/or disadvantage experienced by identified groups, and create equivalent opportunities for academic success regardless of students' backgrounds.'

Higher education providers must be registered with TEQSA. The *Higher Education Standards Framework (Threshold Standards) 2015* legislative instrument (<https://www.legislation.gov.au/Details/F2015L01639/>), provides the basis for TEQSA's regulation of the higher education sector. The Standards outline the requirements and expectations of higher education providers regarding the delivery of higher education in or from Australia, including Standard 2.2 (Diversity and Equity). The Standards establish a baseline for operational quality and integrity of providers and underpin and protect the quality and reputation of the higher education sector.

2.6 Education personnel

Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to "substantially increase the supply of qualified teachers".

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels in your country and regarding the training for the teaching profession (several items could be ticked/mentioned):

- ☒ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels)
- ☒ Initial training and continuous professional development is provided
- ☒ Minimum standards and qualifications are required for the teaching profession
- ☒ Measures taken to strengthen the social status and attractiveness of the teaching profession
- ☐ Performance monitoring systems
- ☐ Measures taken to increase women in leadership positions in education
- ☐ Other:

- Please briefly elaborate further on the measures taken:

While the Australian Federal Government is not directly responsible for operating schools and employing staff, it plays a leadership role in school education. In this role the Australian Government has developed a set of nationally agreed standards for teachers, and a standard for school leaders and principals

Australian Professional Standards for Teachers (Teacher Standards)

The Teacher Standards aim to ensure all graduate teachers can demonstrate knowledge, understanding and identify strategies to create and maintain supportive and safe learning environments. Under the Teacher Standards:

- all graduate teachers must understand and apply the key principles described in codes of ethics and conduct for the teaching profession and understand the relevant legislative, administrative and organisational policies and processes

- every teacher will have an annual performance appraisal. They are also required to have a set of specific goals for the year and collect evidence that they are achieving their objectives. Professional learning for teachers should be aligned with the Teacher Standards

Australian Professional Standard for Principals (Principal Standard)

The Principal Standard seek to ensure all Australian School Principals have knowledge of the relevant national policies, practices and initiatives as well as relevant federal and state legislation, agreements and policies.

The Principal Standard, agreed by all state and territory governments, sets out guidelines for establishing inclusive learning environments and supporting the needs of all students.

Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels)

Teacher salaries differ across Australia. While the Australian Government has a national leadership role in school education, state and territory governments run schools and employ teachers, including setting pay and conditions.

Measures taken to strengthen the social status and attractiveness of the teaching profession

Under the National School Reform Agreement, all Australian Governments have agreed to 'review teacher workforce needs of the future to attract and retain the best and brightest to the teaching profession and attract teachers to areas of need'. A national teacher workforce strategy is currently being developed to ensure there is shared understanding and approaches to challenges and opportunities facing the teacher workforce at a national level.

A Parliamentary Inquiry into the status of the teaching profession released its report in late 2019. A response, outlining how Australian Government reforms and initiatives relating to the teaching profession are contributing to strengthening the status of the profession, is currently being finalised.

Initial training and continuous professional development is provided

Minimum standards and qualifications are required for the teaching profession

Teachers in Australia must successfully complete an accredited Bachelor or higher level qualification in initial teacher education at a university or higher education institution. There are two main types of initial teacher education programs in Australia: undergraduate and postgraduate programs. Undergraduate programs are four years in length. All postgraduate programs must be two years in length, following at least a three-year undergraduate degree that provides the required level of discipline knowledge.

Since 2013, a nationally consistent approach to initial teacher education has been in place through the *Accreditation of Initial Teacher Education Programs in Australia: Standards and Procedures*. To be accredited, initial teacher education providers must demonstrate how their programs deliver the necessary discipline-specific curriculum and pedagogical studies, general education studies and professional experience to develop effective teachers who meet the graduate level of the *Australian Professional Standards for Teachers*.

In 2014, the Australian Government established the Teacher Education Ministerial Advisory Group (TEMAG) to provide advice to the Government on how initial teacher education could be improved to better prepare new teachers. While significant national

progress has been made towards achieving the TEMAG reforms, effort is ongoing to ensure the intent of the reforms is fully realised.

The Standards and Procedures set out the requirements that initial teacher education programs must meet to be nationally accredited. Since 2011, all initial teacher education students have been required to possess levels of literacy and numeracy broadly equivalent to the top 30 per cent of the Australian adult population. In 2015, all education ministers agreed that from 1 July 2016, all initial teacher education students would need to successfully meet the standard assessed by the Literacy and Numeracy Test for Initial Teacher Education Students (the test), before graduation. The test provides a nationally consistent way to demonstrate that students have met the minimum standard of personal literacy and numeracy that is expected of a prospective teacher.

National Quality Framework for Early Childhood Education and Care

- Under the National Quality Framework, early childhood education and care services must meet a range of requirements, including educator qualifications and educator-to-child ratios. The Education and Care Services National Law Act 2010 (National Law) and the Education and Care Services National Regulations set out the minimum requirements for providers and services.
- The Australian Children's Education and Care Quality Authority (ACECQA) has the power to determine the qualifications required to be held by educators, including the assessment of equivalent qualifications, in accordance with section 225 of the National Law. ACECQA assesses qualifications for equivalence against the Qualification Assessment Guidelines for Individual Applicants.

Children's Education and Care National Workforce Strategy

- Attracting, developing and retaining a high quality Early Childhood Education and Care (ECEC) workforce, including Early Childhood Teachers (ECTs), is a priority across the ECEC sector in Australia, and for all Australian governments.
- Although there has been substantial growth in the number of qualified ECTs and educators since the enactment of the National Quality Framework, workforce shortfalls continue to exist across almost all jurisdictions.
- To address these workforce issues, on 12 December 2019, the Australian Government and state/territory governments with responsibility for education, endorsed the development of a new *Children's Education and Care National Workforce Strategy*.
- The Strategy is intended to support the long term quality and sustainability of the early childhood workforce. It will have a particular focus on helping to remove the barriers for educators and ECTs to work in services that support vulnerable and disadvantaged children.

A final Strategy is expected to be approved by all Australian Ministers and launched in mid-2021.

- Have there been instances of discrimination as regards the training for education personnel in your country?

☐ Yes: Has your government addressed this issue?

☒ Yes

☐ No

☐ No

2.7 Respect for human rights and fundamental freedoms

Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.¹² Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items could be ticked/mentioned):

☐ Curriculum includes human rights education

☐ Educational and/or extracurricular activities are organized on human rights education

☒ Other:

The Australian Government Department of Education, Skills and Employment developed the Australian Student Wellbeing Framework (the Framework) to provide guiding principles and effective practices to support whole school communities build and maintain positive relationships through leadership, inclusion, student voice, partnerships and support.

It also provides funding for the Student Wellbeing Hub, which is an online portal that provides students, parents and educators with evidence-informed resources to support and strengthen the integral relationships between students' social and emotional development and their learning outcomes. This includes specific resources that address discrimination of all kinds, and how students can be empowered to take action against discrimination.

The Australian Government also endorses an annual National Day of Action against Bullying and Violence, which empowers students and unites school communities to find workable solutions to address bullying and violence.

The Higher Education Standards Framework Explanatory Statement (available at <https://www.legislation.gov.au/Details/F2015L01639/Explanatory%20Statement/Text>) includes a Statement of Compatibility with Human Rights, prepared in accordance with Part 3 of the Human Rights (Parliamentary Scrutiny) Act 2011 (available at <https://www.legislation.gov.au/Details/C2016C00195>).

The Statement notes that the Threshold Standards instrument engages the right to freedom from discrimination, set out in Article 2(2) of the International Covenant on Economic, Social and Cultural Rights (ICESCR) and Article 26 of the International Covenant on Civil and Political Rights (ICCPR). Sections 1.1 (Admission) and 2.2 (Diversity and Equity) of the Threshold Standards instrument ensure that students from all backgrounds are admitted using policies that are fairly applied, with the academic preparation they need to participate

¹²

Which calls on states to "ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture's contribution to sustainable development".

in their intended study, with student diversity accommodated, including the under-representation and/or disadvantage experienced by identified groups.

2.8 Private education

Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for private education.

- Does your country have a regulatory framework relating to the establishment and functioning of private educational institutions?

Yes ☒ No ☐

- Please provide a brief description:

Higher education providers, including private providers, must be registered with TEQSA. The *Higher Education Standards Framework (Threshold Standards) 2015* legislative instrument (<https://www.legislation.gov.au/Details/F2015L01639/>), provides the basis for TEQSA's regulation of the higher education sector. The Standards outline the requirements and expectations of higher education providers regarding the delivery of higher education in or from Australia, including Standard 2.2 (Diversity and Equity). The Standards establish a baseline for operational quality and integrity of providers and underpin and protect the quality and reputation of the higher education sector.

- Do legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation¹³ explicitly apply to private educational institutions?

Yes ☒ No ☐

- Please briefly describe what laws, regulations or policies guarantee that the development of private education does not generate discrimination and that private schools offer a relevant alternative in your country:

Under Australian constitutional arrangements, state and territory governments are responsible for the delivery and regulation of schooling to all children of school age in their jurisdictions. The Australian Government is responsible for national leadership in key policy priority areas designed to achieve strategic outcomes.

Non-government schools must abide by all employment and discrimination regulations and laws relevant to the state or territory in which they operate, including adherence to national Australian Government law. For example, all schools in Australia, regardless of government or non-government, must adhere to the requirements outlined under the *Disability Discrimination Act 1992*.

Parents or guardians apply to send their children to a non-government school. Non-government schools can operate preferential selection arrangements, for example prioritising accepting students from a particular faith or cultural background.

- Does your country have an education policy framework for minimum educational standards as regards the rights of the parents /legal guardians for providing religious and moral education for their children?

¹³ See: Article/Paragraph 1(1).

Yes ☐ No ☐

The Australian Curriculum includes opportunities for learning about world religions in an historical and cultural context that takes into account their role in shaping societies and in a global context. The Australian Curriculum does not include religious instruction in a particular religion or doctrine. State or territory government and non-government education jurisdictions decide if they wish to offer religious instruction to their students. The Australian Government strongly supports the right of parents to make choices in this area in the best interests of their child and to be provided with full information about any religious education classes in which their children participate. Each State and Territory government has legislation and policies in place regarding attendance and exemptions and parents are within their rights to request that their child is withdrawn from lessons they feel are in conflict with their beliefs.

2.9 Rights of national minorities

Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities. National minorities, who often face language barriers, are among the specific groups referred to in the Convention.

- Please indicate the legal, policy and regulatory measures that protect the rights given to national minorities to carry out their own educational activities (several items could be ticked/mentioned):

- ☐ Constitutional laws and/or legislation protect the right to education of national minorities
- ☐ Legislation or regulations guarantee the right of national minorities to study in their mother tongue
- ☐ Curriculum is adapted to national minority needs
- ☒ Teachers are trained to adapt to national minority needs
- ☐ Other:

See response to 1.3.

- Please provide a brief description of the provisions:

See response to 1.3.

- As regards the educational standards in educational institutions run by minorities, please describe the existing legal and policy framework:

Information could also cover the language facilities, such as the availability of teaching in the mother tongue of the students, use of teaching of languages in education policy, multilingualism, etc.

See response to 1.3.

2.10 Rights of refugees and migrants

The rights of refugees and migrants are not explicitly provided for in the Convention/Recommendation. However, the Convention and Recommendation call on states to eliminate and prevent discrimination in education based notably on national origin.¹⁴ In this context, a number of Member States that participated in the 9th Consultation reported on

measures adopted to ensure refugees' and migrants' right to education. Growing displacement and influx of refugees worldwide and the emergence of major educational challenges in this area, as well as the frameworks recently adopted by the international community,¹⁵ demonstrate the opportunity for states to report on measures adopted to include refugees and migrants in their educational systems.

Besides, this aspect also corresponds to SDG target 4.5, which calls on states to “ensure equal access to all levels of education and vocational training for the vulnerable”, including “children in vulnerable situations”, and covers the majority of SDG4 targets.

- Please briefly describe the existing legal and policy framework that protects the right to quality education for refugees and migrants in your country.

To better support the settlement of newly arrived refugees, the Government has simplified the approach to accessing support services. Under current arrangements, newly arrived refugees are eligible for the Humanitarian Settlement Program (HSP), Adult Migrant English Program (AMEP), and jobactive. These programs ensure that refugees entering the workforce have a sufficient level of English proficiency. From 1 January 2019, newly arrived refugees, receiving activity tested income support, will focus on HSP and AMEP for six months. They will then become eligible for full jobactive services after six months of receiving income support.

- Please briefly indicate measures adopted by national and local authorities to ensure refugees' and migrants' right to education (several items could be ticked/mentioned):

- ☐ Inclusion in mainstream education
- ☐ Provision of language courses
- ☒ Specific training for educational staff
- ☒ Initiatives addressing discrimination and promoting cultural diversity and mutual acceptance
- ☐ Alternative administrative procedure (placement tests, portfolio of evidence, etc.)
- ☐ Accelerated learning programmes
- ☐ Non-formal and/or alternative education programmes
- ☐ Financial support
- ☐ Other innovative measures:

Please briefly elaborate further on the measures taken:

The Australia Government believes that all students have the right to learn in a safe and supportive environment, free of discrimination.

The Australian Government Department of Education, Skills and Employment developed the Australian Student Wellbeing Framework (the Framework) to provides guiding principles and effective practices to support whole school communities build and maintain

positive relationships through leadership, inclusion, student voice, partnerships and support.

It also provides funding for the Student Wellbeing Hub, which is an online portal that provides students, parents and educators with evidence-informed resources to support and strengthen the integral relationships between students' social and emotional development and their learning outcomes. This includes specific resources that address racism and how students can be empowered to take action against racism.

The Australian Government also endorses an annual National Day of Action against Bullying and Violence, which empowers students and unites school communities to find workable solutions to address bullying and violence.

III. Methods used to draw the attention of the various authorities in the country to the instruments and to remove the obstacles encountered

1. Challenges and obstacles

1.1 Please indicate and provide any information on the difficulties encountered in the process of implementing the key provisions of the Convention/Recommendation (including legal and practical obstacles) and on the main issues that need to be addressed for promoting further the right to education in your country (several items could be ticked/mentioned):

- ☐ Challenges related to equitable access and inclusion in education (such as poverty and socio-economic factors, cultural and traditional attitudes, remoteness, migration and displacement, etc.)

Nil

- ☐ Challenges related to the quality of education (such as shortages of qualified, trained and motivated teaching staff, non-supportive or inadequate teaching and learning as well as school environment, etc.)

Nil

- ☐ Challenges relating to the system and governance (such as budgetary constraints, lack or weakness of monitoring systems – including the lack of reliable data, absence of supportive/inconsistent/obsolete legal and policy environment, lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels, etc.)

Nil

- ☐ Other:

Nil

1.2 Please provide a brief assessment of the effectiveness of the methods introduced to remove the obstacles encountered:

Nil

2. Awareness-raising

UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (several items could be ticked/mentioned)

- ☐ Translation of the Convention/Recommendation into the national and possibly local languages
- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education
- ☐ Increased public awareness through advocacy material on the Convention/Recommendation or the core principles of the right to education
- ☒ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☐ Other:

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